

December 19, 2005



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 14291

EXPIRATION DATE: April 30, 2006

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Bristol Bay Contractors, Inc.
King Salmon, AK
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the transportation in commerce of liquefied petroleum gas in a non-DOT specification portable tank authorized under DOT-E 8125, which exceed the package quantity limitations when transported by cargo aircraft. This special permit provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101(9B) in that the quantity limitation for liquefied petroleum gas by cargo aircraft is exceeded; and ' 172.302(c) in that marking the portable tank with the exemption number is waived.
5. BASIS: This emergency special permit is based on the application of Bristol Bay Contractors, Inc., dated December 7, 2005 submitted in accordance with § 107.117 and a determination that it is necessary in order to protect life and the environment.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Liquefied petroleum gas	2.1	UN1075	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a non-DOT specification, non-insulated, 6,400 gallon portable tank designed, constructed, and maintained in accordance with DOT-E 8125, which is on file with the Office of Hazardous Materials Special Permits and Approvals.

b. The portable tank must be secured within the aircraft prior to transportation.

c. The transportation will be from Anchorage International Airport, to King Salmon Airport, King Salmon, Alaska, via cargo aircraft operated by Lyndon Air Cargo, FAA certificate LR7A113H. The return shipment of the depleted portable tank by air is authorized.

d. The marking requirement in ' 172.302(c) is waived.

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at the facility where the package is offered or reoffered for transportation.9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard the aircraft used to transport the package covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

b. Advance Notice of FAA Civil Aviation Security Regional Dangerous Goods/Cargo Security Coordinator (DG/CS) (CASO). Notify the regional DG/CS Coordinator in the region

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where the flight will originate. This notification must be given at least 48 hours in advance of plans to operate under the special permit, unless prior arrangements have been made with the cognizant regional DG/CS Coordinator. The notification will include the point of departure and destination and a loading and departure schedule.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49

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CFR ' ' 171.15 B Immediate notice of certain hazardous materials incidents, and 171.16 B Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.



Robert A. McGuire
Associate Administrator
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM